Blackridge Construction Llc.

APPLICATION AND CERTIFICATE FOR PAYMENT SUMMARY | ACP
and CONDITIONAL WAIVER & RELEASE ON PROGRESS PAYMENT

Project Name:
Address:
Contractor:
Blackridge PM:

LENDER:
Banker:
Application Date:
Application No.:
Reviews Remaining:
Period To:

CONTRACTOR'S APPLICATION FOR PAYMENT

		✓
1. ORIGINAL CONTRACT SUM		
2. NET CHANGE BY CHANGE ORDERS		
3. CONTRACT SUM TO DATE (line 1 + line 2)		
4. TOTAL COMPLETED & STORED TO DATE		
5. LESS RETAINAGE		
6. TOTAL EARNED LESS RETAINAGE		
7. LESS PREVIOUS (PAYMENTS)		
(from line 6 from prior application - must be		
8. CURRENT PAYMENT DUE		
9. BALANCE TO FINISH INCLUDING RETAINAGE		
10. PERCENT COMPLETED %		

CHANGE ORDER SUMMARY

	0
	0
Changes Approved this Period:	
Previously Approved Changes:	
Total Changes:	

SWORN AFFIDAVIT

Blackridge Construction, LLC certifies that to the best of its knowledge information and belief, the Work covered by this Application for Payment has been performed in accordance with the Contract Documents and all applicable governing codes and ordinances.

I also understand that the Lender, in financing the Project on behalf of the Owner, must approve all Change Orders and changes in the scope of the Work.

CONDITIONAL WAIVER & RELEASE ON PROGRESS PAYMENT (*not a FINAL Waiver*)

On receipt by the signer of this document of a check from the Owner, or Owner's representative, in the amount of: __________ payable to Contractor and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanic's lien right, any right arising from a payment bond that complies with state or federal statute, any common law payment bond right, any claim for payment, and any rights under any similar ordinance, rule, or statute related to claim or payment rights for persons in the signer's position that the signer has on the Project.

This release covers a Progress Payment for all labor, services, equipment, or materials furnished to the property or to Owner as indicated in the attached application for payment, except for unpaid retention, pending modifications and changes, or other items furnished.

The signer warrants that it has already paid or will use the funds received from this progress payment to promptly pay signer's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or services provided for or to the Project in regard to this payment application.

CONTRACTOR:

Signed By:

IMPORTANT: YOU MUST HAVE PROVIDED ALL UNCONDITIONAL LIEN WAIVERS FROM ICATION FOR THIS APPLICATION TO BE PROCESSED.

ARCHITECT'S CERTIFICATE FOR PAYMENT

Architect:

In accordance with the Contract Documents, based on on-site observations and the data comprising this application, the Architect certifies to the Owner that to the best of the Architect's knowledge, information & belief the Work has progressed as indicated, the quality of the Work is in accordance with the Contract Documents, and the Contractor is entitled to payment of the AMOUNT CERTIFIED.

Signature: Date:

Notes or Special Conditiions:

IMPORTANT: FUNDS WILL NOT BE DISBURSED PRIOR TO RECEIPT OF FULLY EXECTED OWNER and LENDERS ACKNOWLEDGEMENT DOCUMENTS

Blackridge Construction Llc.

APPLICATION AND CERTIFICATE FOR PAYMENT | Continuation Sheet 1 (CS-1)

Project:

Address

Application No.: ____________

Application Date: ____________

Period To:

A	B	C	D	E	F	G	H	I	J	K	L
LINE ITEM NO.	DESCRIPTION OF WORK	ORIGINAL CONTRACT (SCHEDULED VALUES)	TRANSFERS & CHANGE ORDERS	REVISED CONTRACT AMOUNT	WORK COMPLETED / INFORMATION				RETAINAGE (Defaults to 10%)	BALANCE TO COMPLETE	% (I / E)
					PREVIOUS	This Period	Sub / Vendor / Payee performing work	TOTAL COMPLETED & STORED TO DATE			
L	SUB-TOTAL (PAGE CS-1)										
M	SUB-TOTAL (PAGE CS-2)										
N	SUB-TOTAL (PAGE CS-3)										
O	SUB-TOTAL (PAGE CS-4)										
P	SUB-TOTAL (PAGE CS-5)										
Q	Total Project Costs										

Blackridge Construction Llc.

CHANGE NOTIFICATION

This form MUST be returned signed by all Parties with each Payment Application prior to funding

Contractor: ____________________

Project: ____________________ **Payment Applic. No.** ____________________

Payment Applic. Date: ____________________

INSTRUCTIONS: Place an "X" in each of the boxes next to the statement(s) below which apply.

☐ **There has been NO changes in the scope of work and no Change Orders agreed to by the Parties.**

☐ There **has been changes** to the Project's scope of work. Fully executed Change Order(s) are attached to this document. **I understand the Lender must approve all changes in the scope of work prior the execution of the work. I also understand funds may not be drawn against changes not yet approved by the Owner and Lender and a fully executed Change Order provided.**

Changes prior to this Application include: **$** ____________________

Changes this Application include:

List changes included in this Application and provide the value for each Change in these spaces

Include fully executed Change Order Documents (funds may not be drawn for Changes not approved)

1		
2		
3		
4		

☐ **Changes to the project are imminent.** Provide a detailed description of such change(s) and the source of funding for such changes No work related to these changes has been performed to date. **I understand the Lender must approve all changes in the scope of work prior the execution of the work.**

☐ **There have been changes**, however a properly executed Change Order has not been submitted or approved. Include backup documentation which provides detailed descriptions of such changes. **WARNING: The Lender may elect not to disburse funds for this work**

The source of funding for Changes noted herein is as follows:

(enter in this space the source for funding for Changes)

NOTE: If the space above is left blank - Blackridge assumes Owner (not Lender) is providing Funds.

NOTE: The use of any contingency funds requires Owner and Lender notification, and written approval from both prior to funding. Use of Contingency Funds that are part of the Contract does not require a CO. If Contractor wishes to apply for use of Contingency Funds, provide details related to use of such funds in writing to Blackridge **.**

Acknowledgement, Approval & Signatures

Owner/Date

Architect/Date

Contractor/Date

Blackridge Construction Llc.

SCHEDULE OF VALUES TRANSFER NOTICE | SVTN

Application # ____________________

Application Date: ____________________

BLACKRIDGE PROJECT

OWNER: ____________________

Address: ____________________

City, State, Zip: ____________________

PROJECT: ____________________

Address: ____________________

City, State, Zip: ____________________

CONTRACTOR: ____________________

Address: ____________________

City, State, Zip: ____________________

LENDER ____________________

Address: ____________________

City, State, Zip: ____________________

CONTRACTOR REQUESTS FUNDS TO BE TRANSFERRED ON THE SCHEDULE OF VALUES:

TRANSFER FROM LINE #	AMOUNT TRANSFERRED	TRANSFER TO LINE #	REASON FOR TRANSFER (PROVIDE DETAILS)
A	B	C	D

Rules & Procedures for Transferring funds:

The purpose of the TRANSFER FORM is to enable funds from one line item of work to be transferred to another.

1. **Enter the Line Item (#) from which funds are to be transferred from in Column A.**
2. **Enter the Amount of funds to be transferred from the Line Item in Column B.**
3. **Enter the Line Item (#) to which funds are being transferred to in Column C.**
4. **Provide DETAILED explanation for transfer in Column D. If space provided is not sufficient, provide additional documentation to sufficiently describe why the transfer of funds is needed. Provide backup documentation to demonstrate funds remaining in line items funds are transferred from are sufficient to complete the Work.**

IMPORTANT NOTE: TRANSFERS MAY NOT ALTER THE TOTAL CONTRACT AMOUNT

CONTRACTOR: ____________________ Signed by: ____________________

LENDER: ____________________ Signed by: ____________________

OWNER: ____________________ Signed by: ____________________

Blackridge Construction Llc.

OWNER'S ACKNOWLEDGEMENT OF ADVANCE (OA)

NOTE: Send this and ALL Payment Application Documents to: Billing@blackrdigegc.com

PROJECT NAME:
LOCATION:

APPLIC NO.:
APPLIC. DATE:
THRU DATE:

CONTACT INFORMATION

OWNER:
Address:
Phone:

CONTRACTOR:
Address:
Phone:

LENDER:
Address:
Phone:

3rd Party Inspection
Address:
Phone:

CONTRACT INFORMATION / STATUS:

ORIG CONTR AMOUNT:
APPRVD CHANGES
CURRENT CONTR AMOUNT:
WORK COMPLETED TO DATE:
RETAINAGE WITHHELD:
AMOUNT LESS RETAINAGE:
AMOUNT PREVIOUSLY PAID
REQUESTED AMOUNT
AMOUNT REMAINING:

Note: Amount Remaining includes Retaina

OWNER'S ACKNOWLEMENT

1. This Application for Payment is delivered pursuant to the LOAN DOCUMENTS and other security instruments between the Lender and the Borrower. The Owner (borrower) acknowledges; (a) it has reviewed the Payment Application documents, (b) the information contained in the Payment Application documents is accurate , (c) it is satisfied with the progress of the Work, and (d) the percentage of work completed is commensurate with the actual amount of work performed thus far.

2. Borrower hereby requests an advance in the amount of **$** (the "Requested Amount") from Lender which when advanced will cause the outstanding undisbursed principal amount of the Loan to be:

NOTE: This refers to only that part of the Loan Amount being managed and/or disbursed by Blackridge Construction, LLC

3. On the date hereof, and at the time the Requested Advance is to be made, (a) no default has or will have occurred and is or will be continuing under the Note or the Deed of Trust executed by Borrower for the benefit of Lender, (b) Borrower is not aware of anything which with notice or the passage of time would become a default under such Note or the Deed of Trust, and Borrower has performed all acts required by such loan documents to have been previously performed by Borrower.

4. Borrower is unaware of any Liens, Claims of unpaid bills and/or Notices of Intent to File Lien, or any other claims which could result in Liens upon the property.

5. To the best of it's knowledge, Borrower acknowledges all proceeds of all previous advances have been used for the purposes approved by Lender, and the proceeds of the Requested Advance will be used only for the following:

1) General Construction work per the Contract between the Owner and the Contractor (unless indicated otherwise in spaces below):

5. Attached hereto (to the Progress Report) is such documentation and other evidences of the amounts requested by the Contractor, together with such lien waivers and affidavits necessary to establish the Contractor and all subcontractors and vendors have been paid for invoices previously submitted. The Owner (and/or Borrower) understands and acknowledges that Blackridge Construction, L.L.C. has relied solely upon such documentation and information to base is recommendations and to make disbursements to the Contractor, it's Subcontractors and it's Vendors (Payees). The Owner, Borrower and/or Lender also understands, acknowledge and agree that Blackridge Construction, L.L.C. shall not be responsible for payment to Payees (i.e. Contractors and/or Vendors) of which it has no knowledge.

THIS FORM MUST BE SIGNED & Notarize/Digital Signature BY BORROWER PRIOR TO LENDER FUNDING ADVANCE (DRAW) TO CONTRACTOR

BORROWER:
By (Signature):
Date:

Notary Public/Digital Signature: (document must be Notarize/Digital **(Notary Seal)**

State of:
County of:
Subscribed and sworn to before me this day of
Notary Public/Digital Signature: My Commission expires: